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Top Tax Authority officials ignored abuses for years

An employee of the Tax and Customs Administration who tried to report abuses within the service at the highest administrative level says that he was ignored for years.

He is now retired and has written an urgent letter to the House of Representatives, hoping that he will find a hearing there. [Trouw](#) and [RTLNews](#) have had access to that letter and the email correspondence between Pierre Niessen, his colleagues, and the management of the Tax and Customs Administration. The parliamentary letter has since been made public.

In it, he states that the service demanded money back from at least 40,000 people, even though they were still entitled to a deferral of payment because, for example, their objection still had to be processed. The recovery would therefore have been unjustified.

Niessen is speaking out in response to the childcare allowance affair. In that case, the tax authorities also failed to adhere to the rules by stopping benefits without proof that people were not entitled to them and accusing childminder agencies of fraud. Furthermore, the service was guilty of ethnic profiling.

In this case, too, objections were not processed, and people were forced to repay received benefits without any arrangement, sometimes involving large sums. State Secretary Snel has put a stop to this because it is unclear whether the recovery is lawful.

Signals shared

In a response to Trouw, the Tax and Customs Administration states that, based on Niessen's reports, "signals have been shared with the responsible departments," but it is unclear whether anything has actually been done with them.

State Secretary Snel says that the whistleblower was spoken to on several occasions, including by the director, and that "the signals were shared" as a result. He states that the Allowances Implementation Commission will release a report tomorrow. "It is expected that the handling of objection procedures will also receive attention in this report."

Ran into walls

Niessen, now 68, handled objections at the Collection Department between 2014 and 2016. When the Tax and Customs Administration decided to cancel a payment deferral granted to 40,000 citizens, he received stacks of objections on his desk, but his superiors reportedly instructed him not to acknowledge them.

Because that was against the law, Niessen allegedly did not want to go along with it, but others did, allowing the collection of payments to simply continue. Niessen says that this mechanism also worked in the benefits scandal.

The Tax and Customs Administration has been creaking and groaning for quite some time. NOSop3 produced an explainer about the problems this summer:

The mess at the Netherlands' biggest money machine

His colleagues advised Niessen against raising the alarm. They feared for their positions, while legal experts within the service allegedly condoned the abuses due to the large backlogs that needed to be cleared. Niessen says that he tried to get a hearing all the way up to the highest boss, the Director-General, but that he "ran into brick walls."

Protest at Rotterdam Tax Office against repayment of childcare allowance



Leniency for parents who have to repay childcare allowance



Families wronged by the tax authorities must wait longer for clarity.



Top Tax Authority officials knew about illegal fraud hunt

